

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

SAMSUNG ELECTRONICS AMERICA, INC., *Complainant*

v.

COSCO SHIPPING LINES Co., LTD., *Respondent and
Third-Party Complainant*

v.

SAMSUNG ELECTRONICS COMPANY, LTD.; SAMSUNG SDS
GLOBAL SCL ASIA PACIFIC PTE. LTD.; AND SAMSUNG
ELECTRONICS LOGITECH COMPANY, LIMITED,
Third-Party Respondents.

DOCKET NO. 24-16

Served: August 13, 2025

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge.*

MEMORANDUM ORDER

Pursuant to an August 8, 2025, Order Setting Conference on Discovery Schedule and Protective Order, a status conference was held on August 12, 2025. At the conference, I sought the parties' positions on whether a motion for a protective order would be filed, or whether they had agreed to terms and do not plan to file it. I also inquired about the status of production of documents and asked COSCO, specifically, what impediments they were facing in meeting the current deadline for producing records. All parties were represented and given an opportunity to speak about the issues raised. This Memorandum Order summarizes the decisions made at the status conference.

COSCO asserts that it presented a draft protective order to the other parties in July, but had received no response by the time the motion to enlarge was filed on August 7, 2025. The parties stated at the conference that they are finalizing editing the proposed protective order and they plan to file a joint motion proposing the adoption of the protective order by the end of the week. Because producing confidential documents without a protective order was raised in the motion as an impediment to producing them, and because the parties intend to file a proposed protective order shortly, the parties are hereby **ORDERED** to file the motion for a protective order by 5 p.m. August 14, 2025.

Related to the delay in responding to the draft protective order, I expressed concern regarding Complainant SEA's response to COSCO's notice of filing procedural motions, and SEA responded that COSCO had given little notice of its intent to file the motion to enlarge, SEA's representatives immediately discussed it with its client, and the client responded within

24-hours that it wanted to take no position on the motion. For its part, COSCO stated that it was only trying to comply with the 7-day requirement to file motions ahead of the current scheduled deadline to produce documents. SEA did not address the delay in responding to the draft protective order, and that is the type of delay that the parties should try to minimize going forward.

COSCO seeks in the motion to enlarge time for it to produce documents from August 15, 2025, to September 15, 2025. SEA responded that any enlargement of time should be equally applied. I agree that any enlargement of time of discovery deadlines must apply to all parties to the schedule. I will enlarge the time in which the parties must produce documents to August 28, 2025, and based on the status of production as described in the next joint status report, which is currently due on August 21, 2025, I will consider whether the parties need more time to complete production. The joint status report should be detailed regarding the number of pages produced by both parties as of the date of the joint status report, the status of the gathering, transfer, and processing of documents, including the removal of what the parties contend are privileged documents, how many more pages of documents they anticipate providing, whether all custodians have transferred documents for review, and how much more time the parties estimate they need beyond August 28, 2025, if any. The parties should also discuss when to exchange privilege logs, although that need not be reflected in the joint status report at this time.

At the conference, SEA stated that it has provided approximately 350,000 pages of records (over 93,000 documents) and anticipates providing another 50,000 to 100,000 pages. COSCO has produced 6,000 pages of records and will produce another 500 pages on August 15, 2025. To the extent it is not clearly stated in the scheduling order, the parties are **ORDERED** to produce documents on a rolling basis as they become available.

Accordingly, COSCO's motion to enlarge is **GRANTED IN PART** and **DEFERRED IN PART**, and the parties are **ORDERED** to produce documents by the date below:

August 28, 2025 Complete production of documents

Whether the date for completing production of documents will be enlarged beyond August 28, 2025, and up to September 15, 2025, is deferred until after receipt of the joint status report on August 21, 2025. The parties are not required to file any further motion regarding the enlargement of time to produce documents unless they wish to move for the enlargement or addition of other due dates to the schedule. The parties are reminded that requests for action must be made in the form of a motion and not in a joint status report. Initial Order at 4.

During the conference, COSCO stated that it would like to coordinate discovery with the Third-Party Respondents, in addition to SEA. The two Third-Party Respondents who have been served the Third-Party Complaint via the Hague Convention procedures have filed motions to dismiss. Until those motions have been decided (the second one was only filed on August 11, 2025, and no response has been received), discovery is to continue between the parties to the amended complaint, SEA and COSCO.

The parties are encouraged to file motions jointly, and if they cannot agree to file jointly, to clearly state to each other and in the motion whether another party objects and will file a

response, or whether they consent to the motion without joining it and will not be filing a response. Taking “no position” on a motion causes confusion as to whether a response will be filed and could delay a decision on the motion.



Linda S. Harris Crovella
Administrative Law Judge